

24NWCV01803 24NWCV01803

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Case Number: 24NWCV01803 Hearing Date: August 25, 2026 Dept: L

Defendant's Motion for Summary

Adjudication is GRANTED as to the second cause of action.

Defendant to give notice.

Background

This is an action for negligence regarding an incident that occurred on June 16, 2023. On June 7, 2024, Plaintiff Margarita Duarte ("Plaintiff") filed this action against Defendant The Whittier Dentist ("Defendant") and Does 1 to 25. The Complaint alleges that Defendant is a dental office located at 7721 Painter Avenue, Whittier, CA 90602. The Complaint alleges that Defendant breached its duty of care to Plaintiff by failing to provide safe seating, and as a result, Plaintiff fell. The Complaint alleges two causes of action for 1) Negligence and 2) Professional Negligence.

On July 31, 2024,
Defendant filed an Answer.

Defendant now moves for
summary adjudication of the second cause of action for professional negligence.

On August 3, 2026, Plaintiff
filed a Notice of Non-Opposition.

Legal Standard

The function of a motion for

summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119, internal citations omitted.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 381-382.)

In moving for summary judgment, a

defendant has met its "burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a moving party has satisfied

the initial burden of proof, the burden "shifts to the opposing party to show, by responsive separate statement and admissible evidence, that triable issues of fact exist." (Ostayan v. Serrano Reconveyance Co. (2000) 77 Cal.App.4th 1411, 1418, disapproved on other grounds by Black Sky Cap., LLC v. Cobb (2019) 7 Cal.5th 156, 165.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

Discussion

Defendant moves for summary

adjudication as to second cause of action for professional negligence.

"The elements of a cause of

action for professional negligence are (1) the existence of the duty of the professional to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) breach of that duty; (3) a causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional negligence.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Defendant provides the following undisputed material facts: Plaintiff was a patient of Defendant’s dental office beginning on April 26, 2023. (SVDE, Exh. A.) On June 16, 2023, Plaintiff presented to Defendant’s office. (Ibid.) When Plaintiff sat in the dental chair, the chair tilted downward, causing her to fall over and hit her head on a monitor. (SVDE, Exhs. A, C, D.) When Plaintiff fell, no dental treatment had commenced, and the only witness, hygienist Alex Jauregui, testified that no dental care had been provided to Plaintiff at that point. (Ibid.)

Thus, the undisputed fact establish that no professional services had begun at the time when the accident occurred, and thus, there was no breach of a duty to provide a professional standard of care. Defendant cites caselaw distinguishing between general negligence and professional negligence arising from provision of medical services.

Courts must “draw a distinction between the professional obligations of hospitals in the rendering of medical care to their patients and the obligations hospitals have, simply by virtue of operating facilities open to the public, to maintain their premises in a manner that preserves the well-being and safety of all users.” (Flores v. Presbyterian Intercommunity Hospital (2016) 63 Cal.4th 75, 87 [analyzing whether the Medical Injury Compensation Reform Act (MICRA) applied].) “Although a defect in [furniture that generally plays no part in the patient’s diagnosis or treatment] may injure patients as well as visitors or staff, a hospital’s general duty to keep such items in good repair generally overlaps with the ‘obligations that all persons subject to California’s laws have’ [Citation], and thus will not give rise to a claim for professional negligence. If, for example, a chair in a waiting room collapses, injuring the person sitting in it, the hospital’s duty with respect to that chair is no different from that of any other home or business with chairs in which visitors may sit.” (Id. at p. 89.)

The Court agrees with Defendant

that, based on the evidence, no professional services had been rendered at the time when Plaintiff fell. Plaintiff's claim arises from an injury caused by the alleged condition of the chair. Thus, Defendant has met its burden in proving that Plaintiff is unable to establish the elements of duty, breach, and causation for a professional negligence claim.

Plaintiff has filed a Notice of

Non-Opposition as to summary adjudication of the professional negligence cause of action. Therefore, Plaintiff has failed to meet its burden in establishing a triable issue of fact exists.

Accordingly, Defendant's Motion

for Summary Adjudication is granted as to the second cause of action.